

11. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT OF DAVID T. SEENO
FILED BY:
TENTATIVE RULING:

Based on the stipulation of the parties, this matter is continued to July 27, 2026, 9:00 am, in Department 34, pursuant to the Court's Order signed June 17, 2026.

12. 9:00 AM CASE NUMBER: C25-01037
CASE NAME: ROBERT LOPEZ VS. MARILYNE CASTILLO
HEARING ON DEMURRER TO: ANSWER OF ROBERT LOPEZ
FILED BY:

TENTATIVE RULING:

The Court was advised by the moving party that the demurrer is being withdrawn. Accordingly, the matter is dropped from calendar and the hearing dated vacated.

13. 9:00 AM CASE NUMBER: C25-03561
CASE NAME: RENE ZAMORA VS. MONTEREY VENTURE LP
***HEARING ON MOTION IN RE: TO STRIKE PLTFS CLAIMS**
FILED BY: MONTEREY VENTURE LP
TENTATIVE RULING:

Defendant Monterey Venture LP ("Defendant") filed a Demurrer on February 6, 2026 (the "Demurrer") to the Complaint filed by plaintiffs Rene Zamora and Ana Chavez ("Plaintiffs"). Defendant also filed a separate Motion to Strike on February 6, 2026 (the "Motion to Strike"). The Demurrer and Motion to Strike were both set for hearing on June 22, 2026.

Background

Defendant's Demurrer contends that the second and sixth causes of action fail to state facts sufficient to constitute causes of action. Defendant also demurs to the first and fourth causes of action as duplicative of other pled causes of action.

Furthermore, Defendant moves to strike certain portions of the Complaint, the allegations regarding punitive damages.

No opposition has been filed to the Demurrer or Motion to Strike.

Analysis

The requests for judicial notice submitted by the moving party in support of the Demurrer and Motion

to Strike are GRANTED.

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

First Cause of Action (TORTIOUS BREACH OF THE IMPLIED WARRANTY OF HABITABILITY)

Defendant contends that the first cause of action for "Tortious Breach of the Implied Warranty of Habitability" is duplicative of the third cause of action and does not set out a valid separate cause of action "because California does not recognize a separate tort claim for breach of the implied warranty of habitability."

Defendant is mistaken. Under California law, tenant may state a cause of action in tort against a landlord for damages resulting from a breach of the implied warranty of habitability. *Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903, 918-919 ("**...a tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability.**") (emphasis added). The portions of *Stoiber* cited by Defendant address other nuances and do not state otherwise. See *id.* at 928-930. The elements of an affirmative claim for tortious breach of a warranty of habitability are: (1) the existence of a material defective condition affecting the premises' habitability; (2) notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition; (3) the landlord was given a reasonable time to correct the deficiency; and (4) resulting damages. *Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.). The Complaint sufficiently alleges these elements.

The Demurrer to this cause of action is OVERRULED.

Fourth Cause of Action [BREACH OF CONTRACT - CAL. CIVIL CODE §3300 et seq.]

Defendant argues that the fourth cause of action for breach of contract is duplicative of the third cause of action for contractual breach of the implied warranty of habitability and should be dismissed because both the third and fourth causes of action arise from the same lease agreement and allege breach based on the same conduct, i.e. Defendant's alleged failure to maintain the premises in habitable condition.

This content is without merit. Breaches of distinct contractual obligations may properly be pleaded as separate counts. *Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal. App. 4th 873, 885, fn. 4 (breach of the implied covenant often is pleaded as a separate count even though it is necessarily a breach of contract).

The Demurrer to this cause of action is OVERRULED.

Second Cause of Action [BREACH OF COVENANT OF QUIET ENJOYMENT]

Defendant contends that the second cause of action for breach of quiet enjoyment fails to allege facts sufficient to support the claim and should be dismissed.

The elements of a breach of the covenant of quiet enjoyment are: (1) a lease agreement between plaintiff and defendant; (2) the absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) an act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant's right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy. *Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.

The Complaint plainly sets out specific allegations regarding acts or omissions of the landlord Defendant that are alleged to have substantially interfered with the Plaintiffs' use and enjoyment of the premises. See e.g. Complaint, ¶¶11-18, 29 and 31.

The Demurrer to this cause of action is **OVERRRULED**.

Sixth Causes of Action [RICHMOND TENANT ANTI-HARASSMENT ORDINANCE]

Defendant argues that the sixth cause of action alleging that Defendants have violated the Tenant Anti-Harassment Ordinance by failing to make repairs to the subject premises fails because "...the mere failure to make repairs does not constitute 'harassment' within the meaning of the ordinance."

No authority is cited for this proposition other than the language of the Ordinance itself, which Defendant's own brief recognizes contemplates that failure to perform repair can constitute harassment if done in bad faith. See Tenant Anti-Harassment Ordinance, § 11.103.060, Municipal Code of the City of Richmond ("No landlord, and no agent or employee of the landlord, shall do any of the following in bad faith: ... [¶] (b) Fail to perform repairs...").

As noted above, there are detailed and lengthy allegations regarding the failure to perform repairs, including allegations regarding Defendant's persistence in such failure over time and despite notices of violation issued by the city. See e.g. Complaint, ¶¶11-18. These allegations are more than adequate to allege bad faith.

The Demurrer to this cause of action is **OVERRRULED**.

Punitive Damages

Defendant seeks to strike certain portions of the Complaint praying for punitive damages, contending that the allegations regarding punitive damages are insufficient.

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b). The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. Code Civ. Proc. § 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782. An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." Code Civ. Proc. § 431.10(b).

To support punitive damages, the complaint must allege the ultimate facts of the defendant's oppression, fraud or malice. *Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civ. Code § 3294. “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30. “Oppression” means subjecting a person to cruel and unjust hardship in conscious disregard of his rights. *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.

In addition to the express allegations in the Complaint that Defendant acted with “malice, oppression, and/or fraud,” specific conduct is alleged that a trier of fact could well find amounted to conscious disregard of the Plaintiffs’ rights and/or a willful and conscious disregard of the rights or safety of Plaintiffs. See e.g. Complaint, ¶¶11-18 and 22. These allegations and the other allegations of the Complaint are sufficient to support the prayer for punitive and exemplary damages.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. The Motion to Strike is DENIED.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-03561
CASE NAME: RENE ZAMORA VS. MONTEREY VENTURE LP
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MONTEREY VENTURE LP
TENTATIVE RULING:

See Line 13 above.

15. 9:00 AM CASE NUMBER: L22-01760
CASE NAME: RALPH BARRIENTOS VS. KIMBERLY E. TOWER
***HEARING ON MOTION IN RE: MOTION FOR ATTORNEY’S FEES;MEMORANDUM OF POINTS**
ANDAUTHORITIES
FILED BY: BARRIENTOS, RALPH
TENTATIVE RULING:

Defendant and cross-complainant Kimberly E. Tower (“Landlord”) filed a Motion for Attorney’s Fees on January 30, 2026 (the “Motion for Attorney’s Fees”). The Motion for Attorney’s Fees was set for hearing on April 28, 2026 in Department 14.

Thereafter, the parties stipulated to the resetting of the motion for hearing in Department 34, the department that heard the trial. The Court approved that stipulation and the matter was reset for June 22, 2026 in Department 34.

The motion is opposed.